

Line 2

Case Name: *Richard Ledesma, et al. v. Kelly Primeau, et al.*

Case No.: 25CV480278

See ORDER above. (Under California Rule of Court 3.1322(b), the Court **CONTINUES** this Demurrer to December 4, 2026 at 9:00 AM in Department 16, where it will be heard at the same time as Cross-Defendant Ledesma’s Motion to Strike Portions of the First Amended Cross-Compliant, which also is hereby **ADVANCED** from its currently-set hearing date of March 24, 2027, to December 4, 2026 at 9:00 AM in Department 16. As the concurrently-filed Demurrer and Motion to Strike are required to be heard at the same time, they will both be heard on December 4, 2026 at 9:00 AM in Department 16. C.R.C. 3.1322(b).)

Line 3

Case Name: *Rina Panigrahy, et al. v. Archbishop Mitty High School, et al.*

Case No.: 25CV481631

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant City of San Jose (“City”) demurrers under Code of Civil Procedure Section 430.10(e) and 430.10(f) to the Complaint filed on December 11, 2025 by Plaintiffs Prina Panigrahy, Arunima Panigrahy, and Sapna Rao (“Plaintiffs”) on the grounds that the Complaint is uncertain and fails to state facts sufficient to constitute a cause of action against a public entity. Notice of Demurrer (the “Demurrer”) at 1:21-2:6 (filed: Jan. 27, 2026).

The Demurrer came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to the Complaint, Plaintiffs are homeowners residing on Forest View Drive in San Jose, directly adjacent to Archbishop Mitty High School (“Archbishop Mitty”). Archbishop Mitty is constructing a new soccer field score board that is approximately seventeen feet from Plaintiffs’ backyard fence. The proximity and visibility of such a large, illuminated structure can not only have a negative effect on nearby home values, it can also reduce privacy, disrupt residential character, and alter the view from the backyards. (Complaint, Exhibit A)

Plaintiffs initiate this action on December 11, 2025, alleging causes of action for (1) resulting damages from construction activities, (2) short term effects related to cleaning and inconvenience, and (3) long term effects related to effect on property value. (Complaint, PLD-C-001 ¶¶ 8, 9)

II. Legal Standard on Demurrer

“The party against whom Complaint or cross-Complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom Complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated